标题

The Testimony Gap: Machines and Reasons（中英对照）

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> Machines do not testify. They record, retrieve, and recombine what humans have already said, and in doing so they quietly change what it means to be a witness in a court of law.

机器不作证。它们记录、检索并重新组合人类已经说过的话，而在这个过程中，它们悄悄改变了在法庭上作为证人意味着什么。

> This paper argues that the testimony gap is not a technical deficit but a conceptual one: our evidentiary rules presuppose a speaker who can be cross-examined, and no amount of explainability tooling supplies that.

本文认为，证词鸿沟不是技术缺陷，而是概念缺陷：我们的证据规则预设了一个可以被交叉询问的陈述者，而再多的可解释性工具也无法提供这一点。

> We conclude with a proposal for evidentiary reform in automated courts, drawing on the hearsay doctrine and on recent work in machine learning.

我们最后提出一项针对自动化法庭的证据改革建议，其依据来自传闻证据规则以及机器学习领域近期的研究。